

24STCV19250 24STCV19250

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Department: 529

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Case Number: 24STCV19250 Hearing Date: September 15, 2026 Dept: 529

JON ADAM HINZE V. JUSTIN BARLAGE, AN
INDIVIDUAL, ET AL.

PLAINTIFF JON ADAM HINZE'S MOTION FOR LEAVE TO FILE A FIRST
AMENDED COMPLAINT

Date

of Hearing: September

15, 2026 Trial Date: April

19, 2027

Department: 529 Case No.: 24STCV19250

Moving

Party: Plaintiff Jon Adam Hinze

Responding

Party: No opposition.

BACKGROUND

Plaintiff Jon Adam

Hinze ("Plaintiff") alleges that Defendant Tesla Motors LLC ("Tesla") wrongfully terminated his employment after he complained about alleged fraud in the form of senior management overcharging customers. Plaintiff alleges that his supervisor Defendant Justin Barlage ("Barlage") defamed Plaintiff for his refusal to participate in the fraud.

On August 1, 2024, Plaintiff filed a complaint against Tesla and Barlage (collectively, "Defendants") alleging (1) Wrongful Termination in Violation of Labor Code section 1102.5 against Tesla; (2) Wrongful Termination in Violation of Labor Code section 6310 against Tesla; (3) Retaliation in Violation of Fair Employment and Housing Act against Tesla; and (4) Defamation Per Se against all Defendants.

Default was entered against Defendant Justin Barlage on February 28, 2025. Default was withdrawn on March 14, 2025.

[TENTATIVE]
RULING

Plaintiff Jon Adam Hinze's Motion for Leave to File a First Amended Complaint is GRANTED.

DISCUSSION

Plaintiff Jon Adam Hinze moves this court for an order granting Plaintiff leave to file a First Amended Complaint adding a proposed second cause of action against Defendant Tesla, Inc. for retaliation in violation of Labor Code section 1102.5, subdivision (c), relabeling his causes of action under Labor Code section 1102.5(b), Labor Code section 6310, and the FEHA as claims for "retaliation" rather than "wrongful termination".

The courts have a strong policy of allowing motions for leave to amend. "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend...." (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527.)

A court can deny leave to amend after long, inexcusable delay, where there is cognizable prejudice, such as discovery needed, trial delay, critical evidence lost, or added preparation expense.

(Solit v. Tokai Bank (1999) 68

Cal.App.4th 1435, 1448; Atkinson v. Elk

Corp. (2003) 109 Cal.App.4th 739, 761; Green

v. Rancho Santa Margarita Mortgage Co. (1994) 28 Cal.App.4th 686, 692; Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487.) Notably, "it is

not required to accept an amended complaint that is not filed in good faith, is frivolous, or sham.” (American Advertising & Sales Co. v. Mid-Western (1984) 152 Cal.App.3d 875, 878.)

A motion for leave to amend a pleading must also comply with the procedural requirements of California Rules of Court, Rule 3.1324, which requires a supporting declaration to set forth explicitly what allegations are to be added and where, and explicitly stating what new evidence was discovered warranting the amendment and why the amendment was not made earlier. The motion must also include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (See CRC, rule 3.1324(a), (b).) 2

Plaintiff seeks to add a Second Cause of Action against Defendant Tesla or retaliation in violation of Labor Code section 1102.5(c) based on Tesla’s alleged retaliation after he refused to participate in an unlawful activity. As the complaint already asserts a retaliation claim under Labor Code section 1102.5(b), Plaintiff contends the proposed amendment neither expands the scope of this action nor injects new factual issues. Plaintiff contends he only discovered the basis for the new allegations upon receiving production of documents on July 9, 2026. Moreover, there has been no delay in bringing this motion.

The court GRANTS the motion for leave to amend. Plaintiff has substantially complied with the requirements of Rules of Court, Rule 3.1324 and the motion is unopposed.